

## 23STCV28386 23STCV28386

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-04

Motion: PLAINTIFF'S MOTION FOR RELIEF FROM WAIVER OF JURY TRIAL

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Case Number: 23STCV28386 Hearing Date: September 4, 2026 Dept: 731

SUPERIOR COURT OF THE

STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

MARLOS WILVER MERLOS,

Administrator for the Estate of MARIA OFELIA MERLOS,

Plaintiff,

vs.

ERIC J. MERLOS, an individual;

MIRIAM ESCOBAR AVILA, an individual; DOES 1-20 inclusive; and All Persons

Unknown, Claiming Any Legal Or Equitable Right, Title, Estate, Lien, Or

Interest In The Property Described In This Complaint Adverse To Plaintiff's

Title, Or Any Cloud Upon Plaintiffs Title Thereto, named Herein and DOES

21-50 inclusive,

Defendants.

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AND RELATED PLEADINGS.

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CASE NO: 23STCV28386

[TENTATIVE] ORDER RE: PLAINTIFF'S

MOTION FOR RELIEF FROM WAIVER OF JURY TRIAL

Dept. 731

September 4, 2026

8:30 a.m.

Non-Jury Trial: September 8,  
2026

Moving Party: Plaintiff, Marlos Wilver Merlos, Administrator for the  
Estate of Maria Ofelia Merlos

Opposing Party: None

Notice: OK

1. Background

Facts

(Due to the shared surname of the  
parties, the Court uses the parties' first names below. No disrespect is  
intended.)

This case concerns a family dispute  
over ownership of real property, with Plaintiff, Marlos Wilver Merlos,  
Administrator for the Estate of Maria Ofelia Merlos ("Marlos"), suing various  
Defendants based on allegations that Defendant Eric J. Merlos ("Eric") used  
deception to obtain a joint tenancy interest from their grandmother, Maria, and  
later manipulated events surrounding a quitclaim deed that was never recorded  
before Maria's death, with Eric in turn suing Marlos based on allegations that  
family members improperly pressured both him and Maria, ultimately leading to  
an unrecorded quitclaim deed that Miriam voided, which Marlos nonetheless  
recorded, allegedly clouding title to the property.

Now before the Court is Marlos's  
motion for relief from waiver of jury trial. The motion was filed by Marlos on  
August 31, 2026, and was originally set for hearing on December 1, 2026. Also  
on August 31, 2026, Marlos filed an ex parte application for an order advancing

the hearing date and shortening time on Marlos's motion, which the Court granted on September 2, 2026, setting the motion for hearing on September 4, 2026, prior to the currently scheduled September 8, 2026, trial.

No opposition, which would logically be filed on ex parte basis, appears in the record.

## 2. Motion for Relief for Jury Waiver

### a. Legal Standard

"The right to a trial by jury as declared by Section 16 of Article I of the California Constitution shall be preserved to the parties inviolate. In civil cases, a jury may only be waived pursuant to subdivision (f)." (Code Civ. Proc, § 631, subd. (a).) "At least one party demanding a jury on each side of a civil case shall pay a nonrefundable fee of one hundred fifty dollars (\$150), unless the fee has been paid by another party on the same side of the case." (Code Civ. Proc, § 631, subd. (b).) Jury fees are "due on or before the date scheduled for the initial case management conference in the action." (Code Civ. Proc, § 631, subd. (c).) A party waives jury trial "[b]y failing to timely pay the fee described in subdivision (b), unless another party on the same side of the case has paid that fee." (Code Civ. Proc, § 631, subd. (f)(5).) "The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury." (Code Civ. Proc, § 631, subd. (g).) "It is settled that in case of doubt, the issue should be resolved in favor of preserving a litigant's constitutional right to a trial by jury." (Oakes v. McCarthy Co. (1968) 267 Cal.App.2d 231, 265 (Oakes).) "[T]he denial of a jury trial after waiver where no prejudice is shown to the other party or to the court is prejudicial." (Bryam v. Superior Court (1977) 74 Cal.App.3d 648, 654.)

### b. Discussion

After review, the Court finds that sufficient grounds for relief exist here.

Plaintiff Marlos's moving papers

clarify that the waiver of jury trial in this action was a result of Marlos's failure to file a request for waiver of jury fees when he first initiated the action, with Marlos subsequently demanding a jury trial various controlling pleadings and promptly taking action upon discovering the waiver of jury trial on August 31, 2026. (Motion, Paniagua Decl., ¶¶ 1-9; see, see, e.g., Nov. 17, 2025, Second Amended Complaint, 1:15-16 ["DEMAND FOR JURY TRIAL"] & Apr. 1, 2026, Third Amended Complaint, 1:9-10 [same].)

No opposition exists in the record to dispute Marlos's position, let alone to overcome the general rule in Oakes that in cases of doubt, the issue should be resolved in favor of preserving a litigant's constitutional right to a trial by jury. (Oakes, *supra*, 267 Cal.App.2d at p. 265.)

c. Conclusion

Plaintiff, Marlos Wilver Merlos,  
Administrator for the Estate of Maria Ofelia Merlos's motion for relief from jury waiver is accordingly GRANTED.

Plaintiff, Marlos Wilver Merlos,  
Administrator for the Estate of Maria Ofelia Merlos is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at [smcdept731@lacourt.org](mailto:smcdept731@lacourt.org) indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 4, 2026 \_\_\_\_\_

MARK C. KIM

Judge of the  
Superior Court